

1.

CASE #	CASE NAME	HEARING NAME
CVRI2302280	S. VS RIVERSIDE UNIFIED SCHOOL DISTRICT	MOTION TO TAX COSTS

Tentative Ruling: Grant the motion as to the \$295 in private investigator fees. Deny the remainder of the motion.

A “prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (CCP §1032(b).) A prevailing party is “the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor the defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant.” (*Id.* at (a)(4).) Neither party disputes that Defendants are the prevailing parties and entitled to some costs.

CCP §1033.5 provides a list of costs that are allowable and those that are not. CCP §1033.5(c)(4) provides that any items not identified as allowable and not specifically identified as prohibited, may be permitted at the Court’s discretion. “Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.” (CCP §1033.5(c)(2).)

In ruling on a motion to tax costs, the court must first determine “whether the statute expressly allows the particular item, and whether it appears proper on its face. If so, the burden is on the objecting party to show [the cost] to be unnecessary or unreasonable.” (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131.) If an item is not expressly allowed under the statute, the burden is on the party seeking said expense to provide evidence that the fees are reasonable or necessary. (*Id.* at 132.)

Rough Draft Costs: Plaintiff has withdrawn his motion as to these costs.

Nonappearance and Cancellation Charges: Plaintiff seeks to tax \$2,188.90 in costs incurred in taking the deposition of Beverly Thomas-Marsh - \$881.95 for a certificate of non-appearance in September 2024, \$881.95 for a certificate of non-appearance in October 2024, and \$425 for cancellation of video reporting services in October 2024. CCP § 1033.5(a)(3) allows for the costs in taking, video recording, and transcribing necessary depositions. Costs not specifically precluded can be recovered if they are reasonably necessary for litigation.

Plaintiff argues that the costs incurred in taking a second certificate of non-appearance and the cancellation of video reporting services fees were not reasonable because Defendants knew that Ms. Thomas-Marsh did not want to appear for her deposition. As such, he asserts Defendants should not have incurred said costs until a court order compelling Thomas-Marsh to deposition was obtained. Plaintiff does not articulate why the certificate of non-appearance for September 2024 was not reasonable.

In opposition, Defendants provide evidence that they obtained the second certificate of non-appearance fee in October 2024 and cancellation fees, after obtaining a court order compelling Thomas-Marsh to appear for her deposition and after obtaining confirmation from Thomas-Marsh that she would attend her October 2024 deposition. (Declaration of Nathaniel B. Rosilez, ¶¶ 6-7 and 10-16.) Based on this, Defendants did what Plaintiff contends they should have done, undermining Plaintiff's argument that the fees are unreasonable. In reply, Plaintiff continues to argue that taking the certificate of non-appearance in October was not necessary. This appears to be based on Thomas-Marsh's prior untrustworthy conduct.

It also appears that obtaining the video cancellation fees were reasonable. Based on the evidence in opposition, Thomas-Marsh confirmed she would be attending her deposition 9 days before the deposition. This was after Defendants obtained a court order compelling said deposition. Defendants' conduct in proceeding with a video tapped deposition appears appropriate based on these facts. As such, the costs for the cancellation appear reasonable. The motion is denied as to these costs.

Service of Process Fees: Plaintiff asserts that \$391.80 in fees for attempting to serve Jeffrey Boyd should be taxed because Boyd was successful in serving him three days later, for which Defendant seeks \$239.35 in fees for said service. Plaintiff argues the fees for the unsuccessful service are not proper. Under CCP § 1033.5(a)(4), fees for the service of process by a registered process server is allowed. These fees were incurred by a registered process server. (Declaration of Nathaniel B. Rosilez, ¶¶ 8 and 9.) Plaintiff does not argue that this individual's testimony was not necessary. There is no evidence that indicates that it was unreasonable that service took two attempts. The motion is denied as to this request.

Plaintiff also seeks to tax \$295 in private investigator fees to locate Thomas-Marsh for service of her deposition subpoena. This argument has merit. Investigation fees, except when authorized by law, are not allowed. (CCP § 1033.5(b)(2).) No statute is identified by Defendants. The motion is granted as to this request.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2304620	BALOGH VS CROWN SURGERY MEDICAL GROUP, INC.	MOTION TO ENFORCE SETTLEMENT & ENTER JUDGMENT, SUPPORTING DECLARATION, PROPOSED ORDER

Tentative Ruling: Grant. Proper order needed for signature. Costs to be determined by declaration.